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|     |                                                                                     | <p><i>Special Interrogatory No. 15 IDENTIFY all PERSONS charged with enforcing YOUR company policies and procedures in July 2023, to prevent fraudulent transactions such as those YOU allege against ALI in this matter.</i></p> <p>Motion is DENIED as to No. 15 for the same reasons.</p> <p><b>SANCTIONS:</b></p> <p>Plaintiff's requests sanctions for Defendants' clear abuse of the discovery process. Plaintiff argues its motions to compel and compel further were almost entirely successful, and would have been avoided entirely if Defendants had made themselves available to meet and confer in response to Plaintiff's outreach on February 10, 12, 17, 20, 26, and March 4, 2026. (See 4/10/26 Haj Decls. ISO Motions to Compel at Ex. 1.) Plaintiff further argues that Defendants' four motions, were almost entirely abandoned— they moved on 128 unique requests, but did not even try to defend 114 of them after this Court ordered the parties to further meet and confer. If Defendants had limited their motions to the 14 [sic] requests listed above, the parties and this Court would have conserved an immense amount of resources.</p> <p>Defendants argue that the substantial narrowing of the parties' disputes is not evidence of discovery abuse—it is the direct result of the process this Court ordered the parties to undertake. Following the Court's Tentative Ruling, the parties engaged in extensive additional meet and confer efforts, exchanged information, clarified their respective positions, and resolved the overwhelming majority of the disputed requests.</p> <p>Given that counsel took this Court's order to meet and confer seriously, and narrowed the discovery issues from hundreds of requests to just twelve [12], the Court will not impose sanctions.</p> <p><i>Plaintiff to give notice.</i></p> |
| 200 | CRLA Southern California vs. Saddleback Valley Unified School District, 26-01556345 | <p><i>Parties should contact clerk for tentative ruling.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 201 | Loera vs. United Parcel Services Inc, 24-01420618                                   | <p>Plaintiff Natalie Victoria Loera moves to compel Defendant Abraham Cruz to provide further responses and a production in response to Requests for Production, Set Two, Nos. 53-56.</p> <p>The requests at issue seek any sub-rosa Defendant has of Plaintiff; any investigation videos of Plaintiff; any written</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

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|  | <p>report regarding any surveillance of Plaintiff; and any investigation reports of Plaintiff. (Goncuian Decl., Exh. 1.) Defendant objected to each of these requests on various grounds, including on the grounds that the requested items are protected by the work product doctrine. Plaintiff also attached a privilege log which indicates that Plaintiff withheld "Surveillance of Plaintiff Natalie Loera at or near 3212 West Ravenswood Dr., Anaheim, CA 92804, on April 14-15, 2024." (Goncuian Decl., Exh. 2.)</p> <p>In Defendant's opposition, counsel explains that "the surveillance was conducted specifically at the direction of defense counsel, with counsel's guidance, at the expense of Defendants, and the strategies and information used to capture the surveillance resulted from the impressions, conclusions, opinions, or legal research or theories of defense counsel. The corresponding written reports reflect counsel's 'Impressions, conclusions, opinions, or legal theories' and are therefore considered absolute work product." (Oppn at 7:9-14.)</p> <p>In <i>Suezaki v. Superior Court</i> (1962) 58 Cal.2d 166, the Supreme Court held that surveillance video of a plaintiff in a personal injury action fell within the "qualified" work product protection. The court did not hold that surveillance footage is as a matter of law subject to discovery. (<i>Id.</i>, at p. 178.) Rather, the court remanded the case to the trial court to exercise its discretion in determining whether or not such footage should be produced. (See <i>id.</i>, at pp. 178-79.)</p> <p>Attorney work product protection is now governed by Code of Civil Procedure Section 2018.030. Under the statute, "[a] writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances." (Code Civ. Proc., § 2018.030, subd. (a).) Further, "[t]he work product of an attorney, other than a writing described [above], is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." (Code Civ. Proc., § 2018.030, subd. (b).)</p> <p>Surveillance footage of Plaintiff, taken at the direction of defense counsel and with defense counsel's guidance is subject to qualified work product protection.</p> <p>Plaintiff contends that denial of an order compelling the footage will unfairly prejudice her because the footage may be enhanced, edited or distorted and not having the opportunity to examine the video prior to trial will preclude Plaintiff's counsel from having adequate time to prepare a proper cross examination. (Mtn. at 10:10-16.) Plaintiff further contends that written surveillance reports created by</p> |
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|     |                                              | <p>the investigator are also necessary to evaluate what editing an investigator has performed on the surveillance footage, and is necessary for Plaintiff to be able to fully evaluate whether the surveillance footage accurately captures Plaintiff on a particular day. (Mtn. at 10:17-23.)</p> <p>Plaintiff's arguments are not compelling. The same argument could be made of any evidence offered for impeachment purposes. Further, Defendant has already disclosed the date and location of the footage, and Plaintiff, as its subject, should already be aware of her own actions.</p> <p><i>Accordingly, the motion is DENIED.</i></p>                                                                                                                                                                                                                                                                                                                                |
| 202 | Maple Iron Grove LLC vs. Hudson, 25-01453870 | <p>Fortra Law through Steven Ernest (Counsel for MAPLE IRON GROVE LLC) seeks an order relieving it from acting as counsel of record. (ROA 103)</p> <p>All the requirements of California Rules of Court, Rule 3.1362 have been met, and the Declaration of Attorney Steven E. Ernest appears to demonstrate good cause for granting the motion based on the allegations that there has been an irrevocable breakdown in the relationship which prevents Fortra Law from continuing to represent the client.</p> <p>Thus, the Motion to Be Relieved as Counsel of Record filed by Fortra Law through Steven Ernest is GRANTED.</p> <p>Attorney to update the proposed order (ROA 104) to delete past law and motion dates and include any new dates.</p> <p>Attorney is relieved as counsel of record upon filing the proof of service of the order.</p> <p><i>Moving attorney to give notice.</i></p>                                                                           |
| 203 | KHATSKO vs. OVCHAROV, 26-01572047            | <p>Plaintiff Vitali Khatsko ("Plaintiff") applies for right to attach orders and orders for issue of writs of attachment against defendants Dmitry Ovcharov and Zorka Impex, Inc. (together, "Defendants").</p> <p>"Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Proc., § 483.010(a).)</p> <p>Pursuant to section 484.090(a), "[a]t the hearing, the court shall consider the showing made by the parties appearing and shall issue a right to attach order, which shall state the amount to be secured by the attachment determined by the court in accordance with Section 483.015 or 483.020, if it finds all of the following:</p> |